CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE B

The City of Sanger currently imposes a transient occupancy tax at a rate of 4% of the rent charged for stays of 30 consecutive days or less. This measure would increase the tax rate to 12% and amend and restate the City's transient occupancy tax ordinance to apply to most short term lodging (30 days or less).

The tax is paid by persons occupying hotels or other lodging within the City, rather than by the lodging operator. The amended ordinance expressly applies to traditional hotels and motels and to short-term lodging such as vacation rentals, home-sharing units, houses, apartments, accessory dwelling units, guest houses, campgrounds, recreational vehicle spaces, and similar accommodations. The tax would apply to the total rent charged, including mandatory cleaning, resort, linen, utility, and operator booking fees. The ordinance excludes refundable security deposits, separately stated government taxes, certain separately stated online-platform service fees, and certain charges for food and beverages. It also retains exemptions required by law and exemptions for certain longer-term, governmental, medical, and elder-care occupancies.

Hotel and short-term-rental operators must register with the City, collect the tax from guests, file returns, and remit the tax. Online short-term-rental platforms may also be required to collect and remit the tax and provide specified listing and property information. The ordinance authorizes the City to audit records, determine unpaid taxes, impose penalties and interest, record liens, and use other collection remedies. It also establishes procedures for administrative appeals and refund claims.

The measure is a general tax. Its proceeds would be deposited in the City's general fund and could be used for any lawful municipal purpose. The tax would continue until ended by the voters.

Payment of the tax or issuance of a tax registration certificate would not legalize or authorize a short-term rental or other lodging use that is otherwise prohibited by City zoning, licensing, building, or other laws.

The City Council could amend the ordinance without further voter approval for administrative, enforcement, or legal-compliance purposes, but could not increase the tax rate or extend the tax to occupancies not already covered without any voter approval required by law.

A "yes" vote is a vote to increase the transient occupancy tax rate from 4% to 12%, expand and modernize its application to short-term rentals and online platforms, and adopt the amended ordinance.

A "no" vote is a vote against the measure. The existing 4% transient occupancy tax ordinance would remain in effect.

The above statement is an impartial analysis of the Measure. If you desire a copy of the ordinance or measure, please call the elections official's office (City Clerk) at 559-876-6300 and a copy will be mailed at no cost to you or visit or visit https://sangerca.portal.civicclerk.com/event/3/files/attachment/2207.

Dated: August 24, 2026

Shannon Chaffin
Aleshire & Wynder, LLP, City Attorney

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FRESNO COUNTY CLERK
By DEPUTY